

Our Ref: RR:MS:R240096

16 May 2024

Mr S Cooke



BY EMAIL ONLY: stephencooke.c@gmail.com

Dear Stephen

YOUR FAMILY LAW MATTER - COSTS DISCLOSURE AND AGREEMENT

Thank you for contacting us to assist you with your Family Law matter; we look forward to representing you.

This document, together with our General Terms of Business, sets out the terms of our offer by Ramsden Family Law Pty Ltd to provide legal services to you and constitutes our costs agreement and disclosure pursuant to the Legal Profession Uniform Law (NSW) ("the Uniform Law").

1. Scope of Work

You have instructed us to act and advise in relation to matters arising from your relationship with your former partner.

At this early stage of your Family Law matter, you have requested our legal services with respect to your property settlement and parenting matter.

In representing you, our scope of work includes:

Parenting matters

- (a) advising you in relation to parenting matters for the child/ren including our opinion of what parenting arrangements the court might consider are in their best interests;
- (b) negotiating parenting and/or child support matters in accordance with your instructions including liaising with the other side (or their legal representative), the court, the independent children's lawyer (if appointed) and third parties;
- (c) exploring alternate dispute resolution, in particular mediation (if applicable);
- (d) if an agreement is reached in relation to parenting matters, assisting you to draft the requisite documentation to record or formalise the agreement;
- (e) if no agreement can be reached, assisting you throughout the court proceedings to final hearing (if you instruct us to), including but not limited to, the following:
 - (A) preparing and filing an Initiating Application or Response in the Federal Circuit and Family Court of Australia seeking interim and/or final parenting orders;
 - (B) preparing, filing and inspecting subpoenas (if applicable);
 - (C) assisting you through the process of obtaining a family report and advise you (if applicable);

SYDNEY

BRISBANE

GOLD COAST

T 1300 749 709

E sydney@ramsdenlaw.com.au / ramsdentfamilylaw.com.au

A Level 6, 75 Castlereagh Street, Sydney, NSW, 2000

ABN 11159 606 729

Liability limited by a scheme approved under Professional Standards Legislation

A SMARTER
PERSPECTIVE

- (D) preparing for and attending at all court events (noting that we will usually be required to brief a barrister for these court events); and
- (E) generally assisting you throughout those proceedings.

Financial settlement

- (a) advising you as to our opinion of what the court might consider a just and equitable property settlement;
- (b) advising you as to potential spousal maintenance obligations or entitlements (if applicable);
- (c) negotiating property settlement and/or spousal maintenance matters in accordance with your instructions;
- (d) if an agreement is reached in relation to financial matters, drafting or reviewing the requisite documentation to formalise the agreement; and
- (e) if no agreement can be reached, assisting you throughout the court proceedings to final hearing (if you instruct us to), including but not limited to, the following:
 - (A) preparing and filing an Initiating Application or Response in the Federal Circuit and Family Court of Australia, seeking interim and/or final property settlement and/or spousal maintenance orders;
 - (B) preparing, filing and inspecting subpoenas (if applicable);
 - (C) assisting you through the process of obtaining valuations and relevant financial disclosure (if applicable);
 - (D) preparing for and attending at all court events (noting that we will usually be required to brief a barrister for these court events); and
 - (E) generally assisting you throughout those proceedings.

Our office does not provide financial or taxation advice which we recommend you obtain from your accountant or financial adviser as part of your property settlement. You should let us know of any advice you receive as that advice may impact our advice.

2. Professional Fees

We will charge you professional fees for the work we do based on hourly rates. The hourly rates charged by our professional staff are set out below:

Position	Hourly rate excluding GST	Hourly rate including GST
Partner / Director	\$700.00	\$770.00
Special Counsel	\$625.00	\$687.50
Senior Associate	\$525.00	\$577.50
Associate	\$450.00	\$495.00
Lawyer	\$400.00	\$440.00
Paralegal	\$300.00	\$330.00
Law Clerk / Admin Assistant	\$285.00	\$313.50

The following key personnel may assist you to resolve your Family Law matter:

Name	Position	Email address
Reece Ramsden	Director (Accredited Family Law Specialist)	rramsden@ramsdenlaw.com.au
Matthew Shephard	Special Counsel (Accredited Family Law Specialist)	mshepherd@ramsdenlaw.com.au
Annabel Murray	Special Counsel (Accredited Family Law Specialist)	amurray@ramsdenlaw.com.au
Paul Lewis	Special Counsel (Accredited Family Law Specialist)	plewis@ramsdenlaw.com.au
Daniel Rod	Special Counsel (Accredited Family Law Specialist)	drod@ramsdenlaw.com.au
Sophie Goossens	Senior Associate	sgoossens@ramsdenlaw.com.au
Katherine Evans	Senior Associate	kevans@ramsdenlaw.com.au
Natalie Stenzel	Lawyer	nstenzel@ramsdenlaw.com.au
Michele Allen	Paralegal	mallen@ramsdenlaw.com.au
Victoria Roggentin	Paralegal	vroggentin@ramsdenlaw.com.au
Charlotte McGrath	Law Clerk	cmcgrath@ramsdenlaw.com.au

In relation to each of these personnel:

- (a) Reece Ramsden is our Partner (Director) and will oversee the work on your file if necessary.
- (b) Matthew Shephard will have day to day carriage of your file and are your ordinary point of contact with Ramsden Family Law.
- (c) Victoria and Michele are our main Paralegals who will assist with the daily carriage of your file. They are also your point of contact for any administration and accounts related queries.

You will be proportionately charged for work involving shorter periods less than an hour. Our charges are structured in 6 minute units. For example, the time charged for an attendance of up to 6 minutes will be 1 unit and the time charged for an attendance between 6 and 12 minutes will be 2 units.

Our rates are reviewed on a regular basis and may change during the course of a matter. In relation to lengthy matters this may impact upon our cost estimates (which may be revised accordingly). You will be given 30 days' notice in writing of any changes to our charge out rates. You may contact us regarding your costs at any time.

3. Disbursements and Office Charges

(a) Disbursements

We may incur disbursements (being money which we pay or are liable to pay to others on your behalf). Disbursements may include search fees, court filing fees, process server fees, expert fees, witness expenses, travel expenses, transcript expenses and barrister's fees.

Where you instruct us to brief a barrister or other expert and they provide a disclosure and costs agreement we will provide this to you.

(b) Office Charges and Internal Expenses

Unless otherwise agreed with you, we will charge you 10% of our professional fees on account of office charges and internal expenses. This is to cover general office charges such as printing, photocopying, scanning, faxing, postage, secretarial and legal assistance that would otherwise be chargeable but not charged to you, IT support, ongoing use of our software such as 'Settify', our legal software to store and

manage your file with us such as 'LEAP', local costs of phone, petties, and general sundries in operating an office.

4. Estimate of Costs

On our present instructions, we estimate the cost of the work, inclusive of GST, to be as set out below. These are estimates not exact quotes. The actual fees may vary on the approach taken by you, the other party and their lawyer and the court. They will vary depending on how efficiently we work together.

DESCRIPTION	ESTIMATE OF COSTS
Further meeting/s and providing necessary advice to progress your matters at mediation. This does not include mediator's fees. Assisting you through negotiations to resolve your property settlement and parenting matter including initial disclosure process (if necessary). The costs to prepare for and attend at alternate dispute resolution such as mediation on your behalf preparation of Consent Orders if agreement is reached excluding the cost of the mediator's fees.	- 10,000 approx
WORK ANTICIPATED TO ASSIST YOU IN RESOLVING YOUR MATTER IF YOUR MATTER PROCEEDS TO COURT	
The costs to continue litigation process including preparing and attending court at direction hearing after mediation, compliance and readiness check, preparation for trial and first day of hearing \$35,000. Each further day of hearing \$5,000 each - presuming 3 day hearing \$15,000. Barristers fees for preparation (allowing 3 days) and 3 day hearing at \$7,000 per day \$42,000.	\$35,000 \$10,000 \$42,000
Court hearing fees \$745 setting down and first day, plus \$745 each further day. Presuming 3 days \$2,235. This does include costs of Independent Childrens Lawyer if appointed or Single Expert Family if report if ordered. It does not include further interim hearings - for example in respect of spousal maintenance or house sale process.	\$2,235
Office Charges and Internal Expenses	\$8,350 - \$8,500
TOTAL	\$91,850 - \$93,500

Some of the variables which may affect and change the costs estimate include:

- (a) the number and duration of telephone calls or other communications;
- (b) your prompt and efficient response to requests for information or instructions;
- (c) whether your instructions are varied;
- (d) whether documents have to be revised in light of varied instructions;
- (e) the lawyer or other persons with whom we deal and the level of co-operation of the lawyer's clients and other persons involved;
- (f) changes in the law;
- (g) where a party is self-represented; and
- (g) the complexity or uncertainty concerning legal issues affecting your matter.

Please note that this is an estimate only and not a fixed quote. The total costs may exceed the estimate. While the estimate is based on present information and instructions and our current understanding from you as to what services are required, our costs may exceed the estimate if further information becomes available or circumstances change which affect these matters. In this event we will provide you with a revised estimate as soon as practicable. Where there is a significant change in your matter then as far as possible we will advise the impact of the change on the legal costs

5. Billing Arrangements

We require a pre-payment into trust so that we may commence work on your file.

We ask that you make an initial retainer payment of **\$5,000.00**.

We hold the retainer in our trust account on your behalf and payment will only be made to our general account after we have provided you with an invoice.

Once the funds in trust have been expended, and on an ongoing basis throughout your matter, we will require further retainer payments to ensure you are always in credit of any anticipated legal fees. If funds remain in trust at the conclusion of your matter, those funds will be reimbursed back to you.

We will send you a Tax Invoice:

- (a) approximately monthly, while the work is in progress; and/or
- (b) when the work is completed.

Payment is required within 7 days of the date of the Tax Invoice.

***Fraud warning:** Please be aware that there is a significant risk posed by cyber fraud, specifically relating to email accounts and bank account details. If our bank account details change, you will be notified by letter and not by email. However, please check any change to bank account details with us in person prior to making any payment.*

6. Costs Payable and Recoverable on Litigation Outcome

Usually, parties who are involved in family law litigated proceedings will be required to pay their own legal costs.

Even if you are successful in proceedings and have a costs order in your favour it is unlikely that you will recover all of the costs you must pay us from another party. If you do have a costs order in your favour, it may still be necessary to seek to enforce such costs order e.g. through the assessment system. This can be time consuming and costly. The possible costs associated with such potential enforcement proceedings are not dealt with in this document, but will be advised to you should the relevant circumstances arise. It is also possible that you cannot recover the costs from the other party (for example if the party goes into liquidation or becomes bankrupt); nonetheless you will still have to pay us.

If you lose the litigation, then you will likely have to pay the costs of the other party - either an amount you can both agree on or if no agreement can be reached then an amount of costs assessed by a costs assessor as payable. However, the Court always has a discretion in relation to costs orders.

7. Your Next Steps

If you have any questions about this correspondence or this Costs Agreement/Disclosure, please do not hesitate to contact us.

If you wish to retain us, please:

- (a) sign and date below. **If you would like to sign this by DocuSign, please let us know;** and
- (b) pay your initial retainer of **\$5,000.00**.

We look forward to working with you and helping you to resolve your Family Law matter.

Yours faithfully

RAMSDEN FAMILY LAW



MATTHEW SHEPHERD
Special Counsel
Accredited Specialist in Family Law

Contact: Matthew Shepherd
Email: mshepherd@ramsdenlaw.com.au
Office Line: 02 8123 1232
Document ID: 70764

ACKNOWLEDGEMENT

- (a) I acknowledge receipt of this Costs Disclosure and Costs Agreement including the General Terms of Business dated 16 May 2024.
- (b) I have read and understood the terms. I accept the terms.
- (c) If I am signing on behalf of the client, I confirm I am authorised to do so.


.....
Mr S Cooke

Dated: *May 17th* 2024

GENERAL TERMS OF BUSINESS

1 Billing Arrangements

Our usual policy is to issue a tax invoice on a monthly basis, but we may issue tax invoices on a more frequent basis depending on the nature of the work. All tax invoices are due and payable 30 days from the date of the tax invoice. You consent to us sending our tax invoices to you electronically at your usual email address or mobile phone number as specified by you.

2 Acceptance of Offer

You may accept the Costs Disclosure and Costs Agreement by:

- (a) signing and returning this document to us or;
- (b) continuing to instruct us.

Upon acceptance you agree to pay for our services on these terms.

3 Interest Charges

Interest at the maximum rate prescribed in Rule 75 of the Legal Profession Uniform General Rules 2015 ("Uniform General Rules") (being the Cash Rate Target set by the Reserve Bank of Australia plus 2%) will be charged on any amounts unpaid after the expiry of 30 days after a tax invoice is given to you. Our tax invoices will specify the interest rate to be charged.

4 Recovery of Costs

The *Legal Profession Uniform Law (NSW)* ("the Uniform Law") provides that we cannot take action for recovery of legal costs until 30 days after a tax invoice (which complies with the Uniform Law) has been given to you.

5 Your Rights

It is your right to:

- (a) negotiate a costs agreement with us;
- (b) negotiate the method of billing (e.g. task based or time based);
- (c) receive a bill and to request and receive an itemised bill within 30 days after a lump sum bill or partially itemised bill is payable;
- (d) seek the assistance of the designated local regulatory authority (the NSW Commissioner) in the event of a dispute about legal costs;
- (e) be notified as soon as is reasonably practicable of any significant change to any matter affecting costs;
- (f) accept or reject any offer we make for an interstate costs law to apply to your matter; and
- (g) notify us that you require an interstate costs law to apply to your matter.

If you request an itemised bill and the total amount of the legal costs specified in it exceeds the amount previously specified in the lump sum bill for the same matter, the additional costs may be recovered by us only if:

- (i) when the lump sum bill is given, we inform you in writing that the total amount of the legal costs specified in any itemised bill may be higher than the amount specified in the lump sum bill, and
- (ii) the costs are determined to be payable after a costs assessment or after a binding determination under section 292 of the Uniform Law.

Nothing in these terms affects your rights under the Australian Consumer Law.

6 Your Rights in relation to a Dispute concerning Costs

If you have a dispute in relation to any aspect of our legal costs you have the following avenues of redress:

- (a) in the first instance we encourage you to discuss your concerns with us so that any issue can be identified and we can have the opportunity of resolving the matter promptly and without it adversely impacting on our business relationship;
- (b) you may apply to the Manager, Costs Assessment located at the Supreme Court of NSW for an assessment of our costs. This application must be made within 12 months after the bill was provided or request for payment made or after the costs were paid.

7 Payment Methods

It is our policy that, when acting for new clients, we do one or more of the following:

- (a) ask the client to pay monies into our trust account; and
- (b) ask the client to maintain a minimum amount of monies in trust.

Unless otherwise agreed with you, we may determine not to incur fees or expenses in excess of the amount that we hold in trust on your behalf.

8 Authorisation to Transfer Money from Trust Account

You authorise us to receive directly into our trust account any judgment or settlement amount, or money received from any source in furtherance of your work, and to pay our professional fees, internal expenses and disbursements in accordance with the provisions of Rule 42 of the Uniform General Rules. A trust statement will be forwarded to you upon completion of the matter.

You authorise us to transfer from our trust account to our general account such funds paid into our trust account on account of professional fees, Office Charges, disbursements and GST at such time we have issued our Bill to you.

You authorise us to pay directly from our trust account any Disbursements incurred on your behalf.

You authorise us by this clause 20 to transfer monies held on trust for this matter to the trust account of any of your other matters from time to time, should we receive your instructions to undertake such "trust to trust" transfer in writing. This includes transfers to the trust account of matters which are with your related or associated entities.

In the event a settlement of your matter is reached and you are paid a settlement sum and have an outstanding Tax Invoice, you irrevocably authorise us to take receipt of those settlement monies to our trust account and to pay any and all costs owing to us on your matter.

9 Retention of Your Documents

On completion of your work, or following termination (by either party) of our services, we will retain your documents for 7 years. Your agreement to these terms constitutes your authority for us to destroy the file after those 7 years. The authority does not relate to any documents which are deposited in safe custody which will, subject to agreement, be retained on your behalf indefinitely. We are entitled to retain your documents while there is money owing to us for our costs.

You will be liable for the cost of storing and retrieving documents in storage and our professional fees in connection with this.

10 Termination by Us

We may cease to act for you or refuse to perform further work, including:

- (a) while any of our tax invoices remain unpaid;
- (b) if you do not within 7 days comply with any request to pay an amount in respect of disbursements or future costs;
- (c) if you fail to provide us with clear and timely instructions to enable us to advance your matter, for example, compromising our ability to comply with Court directions, orders or practice notes;
- (d) if you refuse to accept our advice;

- (e) if you indicate to us or we form the view that you have lost confidence in us;
- (f) if there are any ethical grounds which we consider require us to cease acting for you, for example a conflict of interest;
- (g) for any other reason outside our control which has the effect of compromising our ability to perform the work required within the required timeframe; or
- (h) if in our sole discretion we consider it is no longer appropriate to act for you; or
- (i) for just cause.

We will give you reasonable written notice of termination of our services. You will be required to pay our costs incurred up to the date of termination.

11 Termination by You

You may terminate our services by written notice at any time. However, if you do so you will be required to pay our costs incurred up to the date of termination (including if the matter is litigious, any cancellation fees or other fees such as hearing allocation fees for which we remain responsible).

12 Lien

Without affecting any lien to which we are otherwise entitled at law over funds, papers and other property of yours:

- (a) we shall be entitled to retain by way of lien any funds, property or papers of yours, which are from time to time in our possession or control, until all costs, disbursements, interest and other moneys due to the firm have been paid; and
- (b) our lien will continue notwithstanding that we cease to act for you.

13 Privacy

We will collect personal information from you in the course of providing our legal services. We may also obtain personal information from third party searches, other investigations and, sometimes, from adverse parties.

We are required to collect the full name and address of our clients by Rule 93 of the Uniform General Rules. Accurate name and address information must also be collected in order to comply with the trust account record keeping requirements of Rule 47 of the Uniform General Rules and to comply with our duty to the courts.

Your personal information will only be used for the purposes for which it is collected or in accordance with the *Privacy Act 1988* (Cth). For example, we may use your personal information to provide advice and recommendations that take into account your personal circumstances.

If you do not provide us with the full name and address information required by law we cannot act for you. If you do not provide us with the other personal information that we request our advice may be wrong for you or misleading.

Depending on the nature of your matter the types of bodies to whom we may disclose your personal information include the courts, the other party or parties to litigation, experts and barristers, the Office of State Revenue, PEXA Limited, the Land and Property Information Division of the Department of Lands, the Registrar General and third parties involved in the completion or processing of a transaction.

We do not disclose your information overseas unless your instructions involve dealing with parties located overseas. If your matter involves parties overseas, we may disclose select personal information to overseas recipients associated with that matter in order to carry out your instructions.

We manage and protect your personal information in accordance with our privacy policy [which can be found on our firm website or a copy of which we shall provide at your request]. Our privacy policy contains information about how you can access and correct the personal information we hold about you and how you can raise any concerns about our personal information handling practices. For more information, please contact us in writing.

14 Sending Material Electronically

We are able to send and receive documents electronically. However, as such transmission is not secure it may be copied, recorded, read or interfered with by third parties while in transit. If you ask us to transmit any document electronically, you release us from any claim you may have as a result of any unauthorised copying, recording, reading or interference with that document, for any delay or non-delivery of any document and for any damage caused to your system or any files.

15 GST

Where applicable, GST is payable on our professional fees and expenses and will be clearly shown on our tax invoices. By accepting these terms, you agree to pay us an amount equivalent to the GST imposed on these charges.

16 Governing Law

The law of New South Wales governs these terms and legal costs in relation to any matter upon which we are instructed to act.

Liability limited by a scheme approved under Professional Standards Legislation